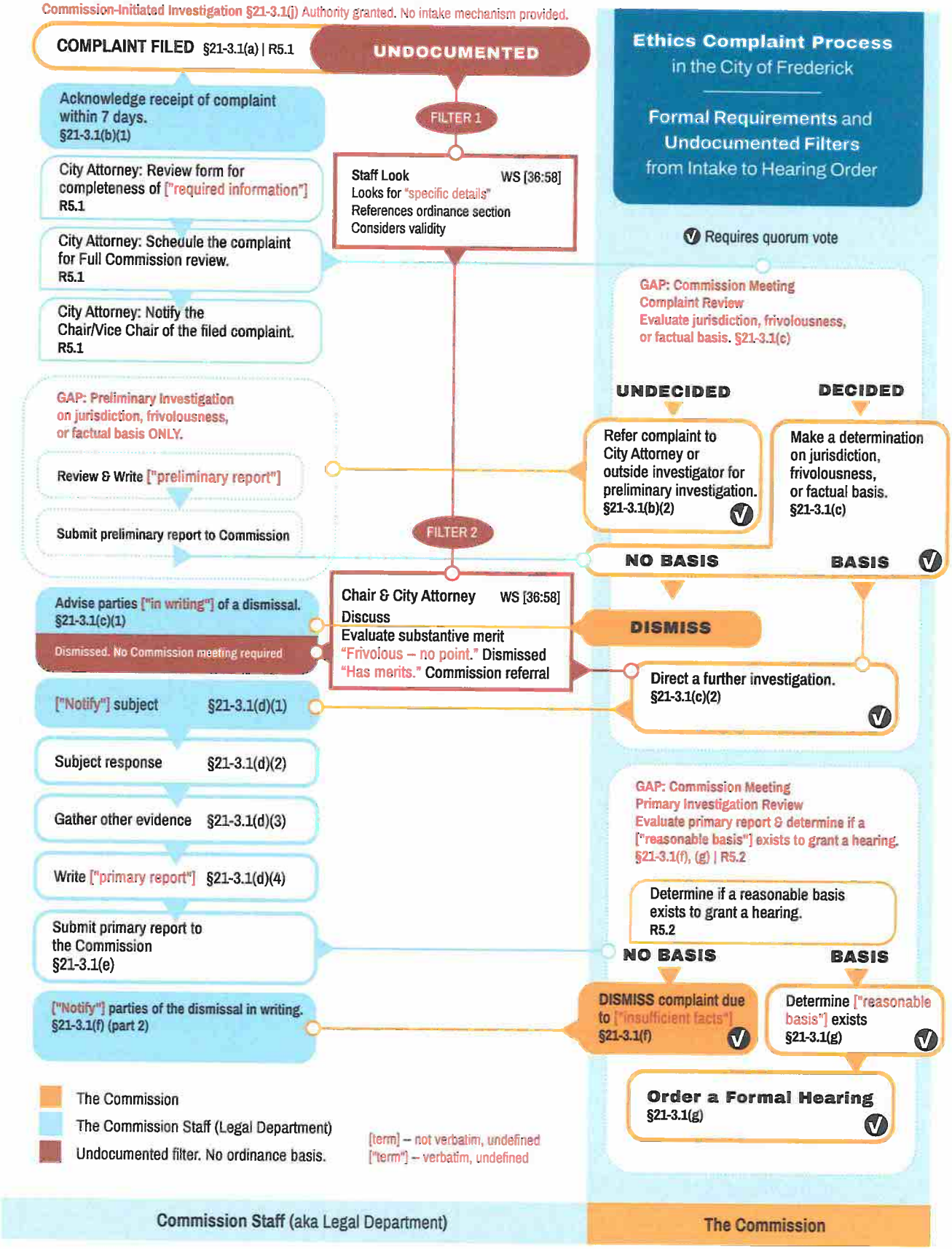


Sources: Chapter 21, City of Frederick Code (Ord. No. G-23-21); Ethics Commission Rules of Procedure (March 26, 2024); City of Frederick Board of Aldermen Workshop, March 1, 2023 [36:58].
Filter 1 and Filter 2 [36:58] are not described in any governing document. Rendered and annotated by Cathy Anderson, Frederick resident.

One Commission, Two Authorities

Control, Conflict, and the Ethics Complaint Process

When an ethics complaint moves through the City of Frederick's process, it assumes a sequence of independent checks.

- Someone handles intake.
- Someone reviews whether it meets the threshold to move forward.
- Someone investigates.
- An advisor guides the body deciding it.
- Someone notifies the parties.
- Someone keeps the meeting record.
- Someone holds cases records.

Each of those functions is supposed to be a check on the others.

- An investigator who isn't the advisor can flag that the advisor's read on the law doesn't match the facts.
- A meeting recorder who isn't the investigator can't quietly leave out what the investigation found.
- A notifier who isn't the decision maker has no incentive to soften or delay what gets sent.

Collapse two of those roles into one person, and one of those chances disappears. Collapse all of them into one office answerable to the Mayor, and none of them exist. *This is the same logic behind judicial recusal, why auditors can't audit their own books and why no one is supposed to be the judge in their own case.*

There is no version of the City of Frederick's ethics process where anyone outside the City Attorney's office is required to handle a complaint before the Commission acts on it.

> *This is not a claim that the City Attorney's office is acting in bad faith. It is a claim that the design gives no one the chance to find out either way.*

Here is what makes this especially difficult to untangle: the ordinance lists its steps in order and puts deadlines on some of them, seven days to acknowledge, thirty days to refer, forty-five days to determine. But it never defines what several of those steps have to produce, and it never says where the private review the chair described fits inside that order, before it, instead of it, or outside the ordinance entirely.

LEGAL ADVISOR

Before a complaint is filed, before intake begins, before any function in this process occurs, one structural fact governs all of them.

The Ethics Commission is advised by the City Attorney by default. §21-2(a)(5) establishes it. That advisory role runs through every stage -- ***intake, investigation, threshold determination, hearing.*** It does not end unless someone decides to replace the City Attorney's office.

That decision belongs to the Commission. Or the Mayor.

The same Mayor who appoints every member of the Ethics Commission. Who directs the Legal Department under City Charter Article VI, §3a. Who may be the subject of the complaint being decided.

The Legal Department is chartered to advise the Mayor, the City Council, and all City staff -- ***every person who could be the subject of a complaint.*** That is City Charter Article VI, §3a.

> *The default legal advisor to the body deciding an ethics complaint is the same office legally obligated to serve everyone it might investigate.*

That is the architecture. Everything that follows operates inside it.

INTAKE

Rule 5.1 directs complaints to the City Attorney, who reviews the form, schedules Commission review, and notifies the chair. Rule 1.2 assigns all correspondence and administrative functions to the Legal Department, subject to the direction of the Mayor. The ordinance at §21-3.1(b)(1) requires acknowledgment of receipt within seven days.

> *The process begins with the City Attorney. So do the filters.*

THRESHOLD REVIEW: Informal

At some point between intake and the full Commission, complaints may disappear.

The chair described it at the March 1, 2023 workshop [36:58]: a private discussion between himself and the City Attorney.

A decision is made whether a complaint has merit. Whether it goes further.

No governing document authorizes that discussion. No criteria define what they apply. No record captures what they decided. No notice is required to either party.

What actually happens in that discussion is unknown. It produces no document. It leaves no trail. There is no way to verify how many complaints have been resolved there, on what basis, or whether any standard has ever been applied consistently.

The ordinance assigns the frivolousness determination to the full Commission under §21-3.1(c), after a preliminary investigation, with written notice to both parties required only after a Commission vote.

What the chair described requires none of that.

The Commission never convenes. No quorum vote occurs. §21-3.1(c)(1) never triggers. Whatever notice a complainant receives has no required content, no required authority, and no required record behind it.

INVESTIGATION: Preliminary

If a complaint survives the informal threshold review, the Commission may refer it to the City Attorney for a preliminary investigation under §21-3.1(b)(2).

Specific purpose: determine jurisdiction, frivolousness, and factual basis.

It is a document review against the governing ordinance -- *not a full investigation. The subject is not notified. No facts are gathered from witnesses.*

No governing document defines what the City Attorney is required to produce at the conclusion of this review. The Commission's threshold determination depends entirely on whatever the City Attorney provides.

This step may never be reached. If a complaint is resolved at the informal threshold review, the Commission never authorizes this referral and the preliminary investigation never begins.

THRESHOLD REVIEW: Formal

If the preliminary investigation is completed, the Commission makes its formal threshold determination under §21-3.1(c).

This is the first point in the process where the full Commission is required to act. **A quorum is required. A vote must occur.**

Three criteria only: jurisdiction, frivolousness, factual basis. If any one fails, the complaint is dismissed and both parties are notified in writing under §21-3.1(c)(1).

The City Attorney advises the Commission on that determination -- the same City Attorney who just conducted the preliminary investigation the Commission is now weighing.

INVESTIGATION: Primary

If the complaint survives, the Commission directs a primary investigation under §21-3.1(c)(2).

This is not a document review. It is an active, mandatory fact-gathering process with four obligations:

- Notify the subject.
- Give the subject an opportunity to present information.
- Obtain information from any person with relevant knowledge.
- Deliver a written report to the Commission under §21-3.1(e).

The City Attorney is the default investigator, conducting that investigation subject to the direction of the Mayor. The Commission may direct an alternative but is not required to do so. The Mayor may separately determine whether outside counsel advises the Commission on the findings. §21-2(a)(5).

§21-3.1(e) sets no deadline. Every other step in this sequence has one: seven days to acknowledge, thirty days to refer, forty-five days to determine. The investigation itself, the step that decides whether an allegation becomes a formal finding, runs on "within a reasonable time." No outer limit. No consequence if it runs long, or never concludes at all.

§21-3.1(a)(3) requires every complaint to name the specific provision allegedly violated: §21-3.1(e) never requires the investigative report to connect back to it. An investigator can gather facts, write a report, and never mention the provision the complaint named.

The ordinance at §21-3.1(i) makes all complaint actions confidential from filing until final determination. It does not define who is bound by that confidentiality. It does not prohibit the City Attorney from briefing the Mayor during an active investigation. It creates no wall between the Mayor's office and the complaint process.

> *The same ordinance that grants the Mayor authority over who advises the Commission says nothing about when or whether that authority may be exercised during any active complaint.*

That gap applies to every complaint. Against any subject. At any stage.

PARTY NOTIFICATION

At every stage where the ordinance requires notification, that notification comes from the Legal Department.

§21-3.1(c)(1) requires written notice to both parties after a threshold determination. §21-3.1(f) requires written notice after a dismissal following the primary investigation. Rule 1.2 assigns all Commission correspondence to the Legal Department.

> *What that notice must contain is another matter. The ordinance requires notification. It does not require explanation. It does not require the notice to identify which criteria applied, which stage produced the outcome, or what authority authorized it.*

A complainant can receive a letter from the Legal Department saying their complaint was dismissed and have no way of knowing whether the full Commission ever saw it.

MEETING RECORD

The Legal Department prepares the agenda for every Ethics Commission meeting, attends every meeting, and keeps the minutes. Rule 1.2 assigns all of it. Rule 3.4 assigns agenda preparation. Rule 3.7 requires a record of proceedings and actions at all meetings.

All of it subject to the direction of the Mayor.

In most public bodies, the staff maintaining the meeting record has one job: document what happened. That staff is not simultaneously the investigator, the legal advisor, and the first point of contact for the complaint that started the proceeding.

In the City of Frederick Ethics Commission, all of those functions belong to the same office.

The office preparing the agenda decides what the Commission sees before it convenes. The office keeping the minutes decides what the record says happened after it does. Once approved, those minutes become part of what Rule 3.7 calls the official record -- *a term the Rules introduce but never define.*

The official record is whatever the Legal Department says it is. No independent standard exists to check it against.

Rule 3.7 requires a record of every meeting, not just public ones. What it limits to public meetings is only the promise that the record will be available for inspection. What happens to that record once a meeting isn't public, whether it's kept, in what form, and whether anyone outside the Legal Department can ever see it, is not addressed.

> *This is not a theoretical vulnerability. There are written admissions from the City proving that meetings were held to dismiss complaints with zero agendas, zero minutes, and zero supporting documents.*

CASE RECORD

When a complaint is resolved, no governing document defines what must be kept.

The Legal Department holds the case record by default under Rule 1.2, subject to the direction of the Mayor. No retention period applies to complaint files, investigative reports, or records of how a complaint moved through the process.

What must be disclosed publicly is equally undefined. The confidentiality provision at §21-3.1(i) protects complaint actions through final determination. After that, the ordinance is silent.

No governing document requires the Ethics Commission to publish outcomes, opinions, or orders. No governing document prohibits it either.

> *What gets kept and what gets shared is discretionary. No consistent standard governs either choice. That discretion sits entirely within the Legal Department, subject to the direction of the Mayor.*

WHAT THIS MEANS

"Where Ethics Complaints Go to Die" showed where complaints disappear before the Commission sees them. "One Commission, Two Authorities" maps every function of the ethics complaint process from intake through the order of a formal hearing -- *and shows who controls each one.*

The Legal Department investigates by default, advises by default, prepares the agenda, keeps the minutes, notifies the parties, and holds the record. All of it subject to the direction of the Mayor.

Both the City Attorney and the Mayor are subject to Chapter 21. Either could be the subject of a complaint. Neither is required to step aside from any function in the process when they are.

No governing document requires disclosure when the Mayor exercises authority over an active complaint. No governing document limits either role based on who the complaint concerns.

The City Is Exposed

"Where Ethics Complaints Go to Die" establishes that the City has no record of what happens at the filters.

This document establishes something deeper: even when the formal process runs, the City cannot show the people running it had no stake in the outcome.

> *Chapter 21 defines "conflict of interest" narrowly -- financial interests, business entities, qualified relatives. It never defines, and never addresses, the one relationship this entire process depends on, an employee whose position answers to the person who may be the subject of the complaint. The prohibition in §21-4 was never written to reach it.*

If a complaint outcome were ever challenged, the City could not show the investigator had no conflict, the legal advisor was neutral, the Mayor had no role, the same standard was applied to every complaint, or the record is complete.

The City Attorney described the process the Legal Department administers by default [48:20]: "very little detail in either the state law or obviously in our ordinance about how any of those processes are to work."

> *What is documented, what is kept, and what is shared varies by complaint with no governing standard to explain the discrepancy.*

That inconsistency is a liability that has been building with every complaint filed.

The People Are Denied a Fair Process

A fair ethics process requires structure and consistency. It requires that the people in it -- *complainant and subject alike* -- can trust that certain basic standards apply to their case.

Nobody knows who is deciding the case: *no governing document requires disclosure of who investigates, who advises, or what role the Mayor plays in either.*

Nobody knows what standard is being applied: *no governing document defines the criteria for the informal threshold review, the output required from the preliminary investigation, or the standard for appointing an alternative investigator.*

No decision maker is required to step aside from a conflict of interest: *the default investigator and default legal advisor are both chartered to serve the people most likely to be named in a complaint. No recusal is required.*

Nobody knows if the record is complete and accurate: *no governing document defines what the complaint record must contain, how long it must be kept, or what must be disclosed after a final determination.*

Nobody knows why a complaint is dismissed: *the ordinance requires written notification of a dismissal at two stages. It does not require stated grounds, explanation, or identification of which stage produced the outcome. Only a final determination resulting from a formal hearing is required to include*

findings of fact and conclusions of law. A complaint dismissed before reaching a hearing, at any stage, carries no such requirement.

Nobody has the ability to challenge the outcome: *there is no appeal process anywhere in Chapter 21 or the Rules of Procedure.*

Nobody knows how public disclosure decisions will be made: *no governing document establishes standards for what is published after a final determination, how the subject's information and the complainant's identity will each be treated, or who makes those decisions. Both are determined by discretion, with no notice to either party and no mechanism to contest the result.*

Every one of these failures applies to the person who filed the complaint. Every one applies to the person named in it. The governing documents address only one -- *written notification of a dismissal.* They say nothing about who investigates, what standard applies, whether conflicts must be disclosed, what the record must contain, or how to challenge the outcome.

QUESTION THE CITY COUNCIL SHOULD BE ASKING

The current ethics ordinance was presented to the previous Board of Aldermen by the City Attorney, passed on December 7, 2023, and signed by the current Mayor.

You did not write it. But you have the authority to fix it.

State law sets the bare minimum. Nothing requires the Legal Department to do more than meet it. No one but this Council can require more.

How many more people have to go through a process where the rules don't have to be followed and nothing proves whether they were, before this Council decides that's enough?

The functions described in this document are drawn from the City of Frederick Code of Ordinances, Chapter 21 (including §21-2(a)(5) and §21-3.1); the Ethics Commission Rules of Procedure, revised March 26, 2024; the City Charter, Article III, §3; and public testimony at the City of Frederick Board of Aldermen Workshop, March 1, 2023 **[36:58]**.

The City Council should commission an independent review of the ethics complaint process — independent meaning no reporting relationship to the Mayor and no prior role in any complaint — and require that any recommendations come back to the full City Council for a public vote. A reform process run by the same office that controls the current one is not a reform

Sec. 21-2. - Ethics Commission.

(a) *Established.*

(1) The Commission is hereby established and is composed of five members appointed by the Mayor with the consent of the Board of Aldermen.

(2) Each member must be a city resident.

(3) Each member shall be appointed for a term of three years. In the case of the expiration of a term, a member may continue to serve until that member's successor is appointed. Members may be reappointed to successive terms.

(4) The Commission shall elect a chair and vice-chair on an annual basis.

(5) The Commission shall be advised by the City Attorney, or other legal counsel if deemed appropriate by the Commission or the Mayor.

(b) *Duties.* In addition to the other duties established by this chapter, the Commission shall:

(1) Interpret this chapter and advise persons subject to it as to its application;

(2) Hear and decide any complaint filed regarding an alleged violation of this chapter by any person;

(3) Devise, receive, and maintain all forms required by this chapter; and

(4) Conduct a public information and education program regarding the purpose and implementation of this chapter.

(c) *Certification.* The Commission shall certify to the State Ethics Commission on or before October 1 of each year that the City is in compliance with the requirements of General Provisions Article, Title 5, Subtitle 8, Annotated Code of Maryland, for elected local officials.

(d) *Required changes.* The Commission shall determine if changes to this chapter are required in order to ensure compliance with the requirements of the General Provisions Article, Title 5, Subtitle 8, Annotated Code of Maryland, and shall forward any recommended changes and amendments to the Board of Aldermen for enactment.

(e) *Rules of Procedure.* The Commission shall adopt rules of procedure to assist it in carrying out its responsibilities, including but not limited to policies and procedures related to the advisory request process and the complaint process.

(f) *Removal.* A Commission member may be removed by the Board of Aldermen, after a hearing, for:

(1) Neglect of duties;

(2) Misconduct in office;

(3) A disability that makes the member unable to discharge the powers and duties of office; or

(4) A violation of this chapter.

Sec. 21-4. - Conflicts of interest.

(a) *Definition.* In this section, "*qualified relative*" means a spouse, parent, child, or sibling.

(b) *Restrictions on participation.* Except as permitted by the Commission under section 21-8 of this chapter, an official or employee subject to this chapter may not participate in:

(1) Except in the exercise of an administrative or ministerial duty that does not affect the disposition of the matter, any matter in which (to the knowledge of the official or employee) the official or employee, or a qualified relative of the official or employee, has an interest;

(2) Except in the exercise of an administrative or ministerial duty that does not affect the disposition of the matter, any matter in which any of the following is a party:

(A) A business entity in which the official or employee has a direct financial interest of which the official or employee may reasonably be expected to know;

(B) A business entity for which the official, employee, or a qualified relative of the official or employee is an officer, director, trustee, partner, or employee;

(C) A business entity with which the official or employee or, to the knowledge of the official or employee, a qualified relative is negotiating employment or has any arrangement concerning prospective employment;

(D) If the contract reasonably could be expected to result in a conflict between the private interests of the official or employee and the official duties of the official or employee, a business entity that is a party to an existing contract with the official or employee, or which, to the knowledge of the official or employee, is a party to a contract with a qualified relative;

(E) An entity, doing business with the City, in which a direct financial interest is owed by another entity in which the official or employee has a direct financial interest, if the official or employee may be reasonably expected to know of both direct financial interests; or

(F) A business entity that:

(i) The official or employee knows is a creditor or obligee of the official or employee or a qualified relative of the official or employee with respect to a thing of economic value; and

(ii) As a creditor or obligee, is in a position to directly and substantially affect the interest of the official or employee or a qualified relative of the official or employee.

(3) A person who is disqualified from participating under paragraph (1) or (2) of this subsection shall disclose the nature and circumstances of the conflict and may participate or act if:

(A) The disqualification leaves a body with less than a quorum capable of acting;

(B) The disqualified official or employee is required by law to act; or

(C) the disqualified official or employee is the only person authorized to act.

(4) This paragraph applies to a former regulated lobbyist who is or becomes subject to this chapter as an employee or elected official. The employee or elected official may not participate in a case, contract, or other specific matter for one calendar year after the termination of the registration of the former regulated lobbyist if the former regulated lobbyist previously assisted or represented another party for compensation in the matter.

(c) *Employment and financial interest restrictions.*

(1) Except as permitted by the Commission under Section 21-8 of this chapter when the interest is disclosed or when the employment does not create a conflict of interest or appearance of a conflict, an official or employee may not:

(A) Be employed by, or have a financial interest in, any entity:

(i) Subject to the authority of the official or employee or the City board or commission with which the official or employee is affiliated; or

(ii) That has or is negotiating a contract with the City; or

(B) Hold any outside employment that would impair the impartiality or independence of judgment of the official or employee; or

(C) Represent any party, whether or not for compensation, before the Board of Aldermen or any board or commission of the City.

(2) This prohibition does not apply to:

(A) An official or employee who is appointed to a regulatory or licensing authority pursuant to a statutory requirement that persons subject to the jurisdiction of the authority be represented in appointments to the authority;

(B) An official or employee whose duties are ministerial, if the private employment or financial interest does not create a conflict of interest or the appearance of a conflict of interest, as permitted by the Commission; or

(C) Employment or financial interests allowed by the Commission if the employment does not create a conflict of interest or the appearance of a conflict of interest or the financial interest is disclosed.

(d) *Post-employment limitations and restrictions.*

(1) A former official or employee may not assist or represent any party other than the City for compensation in a case, contract, or other specific matter involving the City if that matter is one in which the former official or employee significantly participated as an official or employee.

(2) For one year after an elected official leaves office, the former elected official may not assist or represent another party for compensation in a matter that is the subject of legislative action.

(e) *Solicitation and acceptance of gifts.*

(1) An official or employee may not solicit any gift.

(2) An official or employee may not directly solicit or facilitate the solicitation of a gift, on behalf of another person, from an individual regulated lobbyist.

(3) An official or employee may not accept, directly or indirectly, a gift from any person or entity that the official or employee knows, or has reason to know:

(A) Has or is negotiating a contract with the City;

(B) Is engaged in an activity regulated or controlled by the City;

(C) Has financial interests that may be substantially and materially affected, in a manner distinguishable from the public generally, by the performance or nonperformance of the official duties of the official or employee;

(D) Is a lobbyist with respect to matters within the jurisdiction of the official or employee; or

(E) Is an association, or any entity acting on behalf of an association, that is engaged only in representing counties or municipal corporations.

(4) Paragraph (5) of this subsection does not apply to a gift that would tend to impair the impartiality and the independence of judgment of the official or employee receiving it or, if of significant value, would give the appearance of doing so, or, if of significant value, the recipient official or employee believes, or has reason to believe, that it is designed to do so.

(5) Notwithstanding paragraph (3) of this subsection, an official or employee may accept the following:

(A) Meals and beverages consumed in the presence of the donor or sponsoring entity;

(B) Ceremonial gifts or awards that have insignificant monetary value;

(C) Unsolicited gifts of nominal value that do not exceed twenty dollars ($20.00) in cost or trivial items of informational value;

(D) Reasonable expenses for food, travel, lodging, and scheduled entertainment of the official or the employee for a meeting which is given in return for participation in a panel or speaking engagement at the meeting;

(E) Gifts of tickets or free admission extended to an elected official to attend a charitable, cultural, or political event, if the purpose of this gift or admission is a courtesy or ceremony extended to the elected official's office;

(F) Gifts from a person related to the official or employee by blood or marriage, or any other individual who is a member of the household of the official or employee;

(G) Honoraria for speaking or participating in a meeting, provided that the offering of the honorarium is not related in any way to the official or employee's official position; or

(H) Any other gift that would not present a conflict of interest as determined by the Commission.

(f) *Prestige of office.*

(1) An official or employee may not intentionally use the prestige of office or public position: for the private gain of that official or employee or the private gain of another. Use of the prestige of an office includes, but is not limited to:

(A) Acting, or creating the appearance of acting, on behalf of the City by making any policy statement, or by promising to authorize or to prevent any official action of any nature, when the official or employee is not authorized to make such a statement;

(B) Representing the official's or employee's personal opinion to be the official position of the City or any agency of the City;

(C) Using or attempting to use the official's or employee's official position improperly to unreasonably request, grant, or obtain in any manner any unlawful or unwarranted privileges, advantages, benefits or exemptions for the official or employee or another person; and

(D) Using, for immediate private financial gain or advantage, City time or the City's staff, facilities, equipment or supplies to secure privileges or exemptions for the official or employee or others.

(2) The performance of usual and customary constituent services, without additional compensation, does not constitute the use of the prestige of office within the meaning of this subsection.

(3) An employee or an appointed official may not use public resources or the title of the employee or appointed official to solicit a contribution. An elected official may not use public resources to solicit a contribution. For purposes of this paragraph, the term "contribution" has the meaning given in the Election Law Article of the Annotated Code of Maryland.

(g) *Disclosure of confidential information.* Other than in the discharge of official duties, an official or employee or former official or employee may not disclose or use confidential information that the official or employee acquired by reason of the official's or employee's public position or former public position and that is not available to the public, for the economic benefit of the official or employee or that of another person.

(h) *Employment of family members.* An official or employee may not cause or advocate a member of the official's or employee's family to be hired, employed, promoted, transferred or advanced to any full time or regular part time paid employment of the City. An official or employee may not participate in an action relating to the discipline of a member of the official's or employee's family.

(i) *Participation in procurement.*

(1) An individual or a person that employs an individual who assists a City agency in the drafting of specifications, an invitation for bids, or a request for proposals for a procurement may not submit a bid or proposal for that procurement or assist or represent another person, directly

or indirectly, who is submitting a bid or proposal for the procurement.

(2) The Commission may establish exemptions from the requirements of this section for providing descriptive literature, sole source procurements, and written comments solicited by the procuring agency.

(j) *Harassment.*

(1) It is the policy of the City to maintain an environment in which all individuals are treated with respect. Harassment is unacceptable and will not be tolerated.

(2) An elected official may not engage in harassment as defined in the Anti-Harassment Policy.

(3) The Anti-Harassment Policy will be enforced in accordance with Sections 21-9 and 21-10 of this chapter.

(4) An elected official may not knowingly and intentionally make a materially false statement or representation in relation to a harassment claim or investigation.

(k) *Retaliation.* An official or employee may not retaliate against an individual for reporting or participating in an investigation of a potential violation of the local ethics law or ordinance.

(Ord. No. G-23-21, 12-7-23)

FACTUAL BASIS

Nine Functions, Two Authorities

The City Attorney and the Mayor in the Ethics Complaint Process

Function	What the City's Records Establish	Source
Legal Advisor *advises the Commission at every stage*	The **City Attorney** advises the Commission by default at every stage. The **Mayor** may determine whether outside counsel replaces the City Attorney at any point in the process. The **Legal Department** is simultaneously chartered to advise the Mayor, City Council, City staff *and* is subject to the direction of the **Mayor**.	§21-2(a)(5) VI §3a
Intake *receives complaints and issues correspondence*	The **Legal Department** acknowledges. The **City Attorney** reviews the complaint form for completeness, schedules the complaint for Commission review, and notifies the chair or vice chair.	§21-3.1(b)(1) R1.2 R5.1
Threshold Review: Informal *criteria undocumented*	The chair and **City Attorney** discuss privately. **No** criteria, **no** record, **no** governing authority. Complaints may be dismissed before the full Commission convenes.	03/01/2023 workshop [36:58]
Investigation: Preliminary *determines jurisdiction, frivolousness, and factual basis only*	The **City Attorney** is the default investigator with **no** defined output requirement. This step may be bypassed entirely by Filter 2.	§21-3.1(b)(2)
Threshold Review: Formal *applies three criteria: jurisdiction, frivolousness, factual basis*	The **City Attorney** advises the Commission for its threshold determination. The Commission votes -- *quorum required -- on jurisdiction, frivolousness, and factual basis.*	§21-3.1(c); §21-2(a)(5) R6.1
Investigation: Primary *notifies subject, gathers facts, and reports findings*	The **City Attorney** is the default investigator. The Commission may direct an alternative but is not required to do so.	§21-3.1(c)(2) §21-3.1(d)
Party Notification *communicates outcomes to both sides at each stage*	The **Legal Department** issues and receives all Commission correspondence at every stage.	R1.2 §21-3.1(c)(1) §21-3.1(f)
Meeting Record *creates agendas, attends meetings, and keeps minutes*	The **Legal Department** prepares agendas, attends all meetings, and maintains all records	R1.2; R3.4 R3.7
Case Record *holds and discloses the record of each complaint*	**No** governing document defines what a complaint file must contain, how long it must be kept, or what must be disclosed publicly. What is retained and what is made public is discretionary.	

City of Frederick Code of Ordinances, Chapter 21. Ethics Commission Rules of Procedure, revised March 26, 2024. City Charter, Article III, §3. City of Frederick Board of Aldermen Workshop, March 1, 2023 **[36:58]**.

FACTUAL BASIS

Undefined Standards in §21-3.1

The Architecture of Discretion

§21-3.1(A) — FILING

"specific violation" — no definition of what makes an allegation specific enough

"pertinent facts" — no definition of pertinence or threshold of detail required

"violative action" — not defined anywhere in Chapter 21

"relationship" §(a)(4) — the complainant must describe their relationship to the subject, but no definition of what relationships matter or why, and no framework distinguishing a civic-interest complainant from a private-interest complainant

§21-3.1(B) — REFERRAL

"Commission's staff" — not defined in the ordinance; Rule 1.2 of the Ethics Commission Rules of Procedure assigns these functions to the Legal Department, but Chapter 21 never establishes that connection

"if appropriate" — the standard triggering whether to refer for preliminary investigation; entirely undefined, no criteria

"other investigator" — who qualifies, who selects, what authority they hold, who pays; none of it defined

"frivolous" — legal term of art, not defined in the ordinance

"reasonable factual basis" — not defined; no threshold, no criteria, no distinction from the primary investigation standard

§21-3.1(C) — INITIAL DETERMINATION

"completion of the preliminary investigation" — no definition of what constitutes completion; the forty-five-day clock starts here but the starting point is undefined

"jurisdiction" — the ordinance covers certain persons and certain conduct, but "jurisdiction" as a dismissal standard is never defined or bounded

"further investigation" §(c)(2) — the transition from preliminary to primary is named but not described; what triggers it beyond the Commission's undirected conclusion is unspecified

§21-3.1(D) — PRIMARY INVESTIGATION

"investigator" — same undefined actor as "other investigator" in (b); no qualifications, selection process, or authority defined

"nature of the complaint" — what this notification must contain is undefined

"every effort to preserve confidentiality" — no standard, no definition of effort required

"relevant information" §(d)(3) — relevance standard undefined

"any other source" §(d)(3) — scope of the investigator's reach is unlimited and undefined

"as necessary" §(d)(3) — necessity standard undefined

§21-3.1(E) — INVESTIGATIVE REPORT

"within a reasonable time" — no definition; no outer limit; no consequence for failure to submit

"results of the investigation" — what the report must contain beyond a list of statements received is undefined; no format, no required conclusions

§21-3.1(F) — DISMISSAL

"insufficient facts" — not defined; no relationship drawn to the "reasonable factual basis" standard in (b) and (c); a different phrase for what may be the same threshold, or may not be

§21-3.1(G) — HEARING

"reasonable basis for believing a violation has occurred" — the hearing trigger; a third distinct phrase from "reasonable factual basis" in (b)/(c) and "insufficient facts" in (f); no definition, no relationship among the three established

"applicable rules of procedure" — what makes a rule applicable is undefined; which rules govern if the Rules of Procedure are silent is undefined

"findings of fact and conclusions of law" — required in the output but no standard for what satisfies either requirement

§21-3.1(J) — COMMISSION SELF-INITIATION

"in the same manner as complaints" — the entire intake process in (b) presupposes a filed complaint and a complainant; no definition of how "same manner" applies when neither exist

City of Frederick Code of Ordinances, Chapter 21. Ethics Commission Rules of Procedure, revised March 26, 2024.

FACTUAL BASIS

Investigation Process as Described at Workshop

Public testimony at the City of Frederick Board of Aldermen Workshop, March 1, 2023

The exchange below covers the ordinance's complaint review and investigation provisions. At no point does any participant distinguish between the preliminary review described at §21-3.1(b)(2) and the formal investigation described at §21-3.1(c)(2) and (d).

These are not the same step. The preliminary review at §21-3.1(b)(2) asks only whether a complaint meets a basic threshold to move forward: *is it within the Commission's jurisdiction, is it frivolous, does it have any reasonable factual basis.*

The formal investigation at §21-3.1(c)(2) requires something different entirely: *the investigator must notify the subject of the complaint, give the subject an opportunity to present information, and gather information from any person with relevant knowledge. One is a threshold check. The other is an active, mandatory fact-gathering process with obligations to both sides. No one in this workshop distinguishes between them.*

This workshop was convened specifically to discuss the ethics ordinance. The City Attorney reviewed it for legal sufficiency. The Board of Aldermen passed it. The Mayor signed it into law.

If the people most responsible for this ordinance cannot distinguish between its own steps at a public workshop, how confident can anyone be that the right step was followed for any specific complaint?

Kuzemchak [31:15]: "...on 21-3(b), complaints... it talks about the complaint must be written and under oath, the Commission may refer a complaint to the city attorney if appropriate for investigation and review. Can somebody tell me what that means, this investigation and review?"

City Attorney [31:48]: "Well, Rick can probably provide more information about what has been done in the past and the relatively rare instances where this has happened. My understanding is that what's typically been done is just a report of facts, as opposed to the city attorney making an independent determination as to whether there was a violation of the ordinance."

> *The City Attorney described how investigations work using the word 'understanding' and deferred to the chair to fill in the gaps. The City Attorney's office is responsible for conducting the process by default. §21-3.1*

Kuzemchak [32:23]: "So a report of the facts. So not the complaint, not just the complaint...whether or not that complaint... somebody says I heard Alderwoman say this... while she was having lunch... you talk to the person that I supposedly said it to, they say yes, Alderwoman said this to me at lunch, yes it was, you know, there were

other people around... And so the investigation really isn't the question of whether I said something. That's not an investigation as to whether or not that is a violation of the ordinance. That's a question of whether or not I said something."

City Attorney [33:16]: "Correct."

Kuzemchak [33:18]: "So the investigation has nothing to do with whether or not the person has actually violated the ordinance."

City Attorney [33:22]: "Right, that's up to the Commission to take those facts and apply the law and determine whether they believe there was a violation."

Kuzemchak [33:29]: "Well, except for if the investigation doesn't even determine which part of the law I supposedly was violating and how I did that, how is that an investigation?"

City Attorney [33:43]: "I would say which part of the law you may or may not have been violating would also be up to the Commission. They have, of course, the law, they would have the facts, and they would have to determine whether what you said to someone at lunch constituted a violation of any part of the ethics ordinance."

The ordinance describes two distinct investigations with different purposes and different obligations: *a preliminary review §21-3.1(b)(2) and a primary investigation §21-3.1(c)(2) and (d). No one in this exchange distinguishes between them, including the City Attorney who reviewed it for legal sufficiency and administers it by default.*

Kuzemchak [34:01]: "But there's more to that. So what I said at lunch, if my relationship with this person has something to do with whether or not it's an ethics violation, then my relationship with that person would also have to be part of the investigation."

City Attorney [34:20]: "Yes..." (unclear)

Kuzemchak [34:21]: "...for them to have all of the facts. Otherwise you're talking about only having part of the facts."

City Attorney [34:21]: "That's also what the point of a hearing would be also."

Kuzemchak [34:32]: "So except to bring something to a hearing without having all of the facts means that I, as an elected official or possibly an appointed official here in the city, might have to hire an attorney and spend thousands of dollars for something that you don't even have the facts for. But you're accusing them of. That's not an investigation."

The ordinance assigns fact-gathering to the primary investigation, not the hearing. §21-3.1(c)(2), §21-3.1(d). The City Attorney described the hearing as the place where complete facts emerge. That is what the primary investigation is for.

Mayor [34:54]: "Is it fair to say that it's pretty... I understand the line of questioning that Kuzemchak is going for, but it's pretty fact specific. I mean, what you have to have in

front of you is a complaint and that complaint is going to allege certain things and you're going to review, someone is going to review those allegations and make a determination whether those allegations may or may not be a violation of the ordinance."

The Mayor described a process where "someone" reviews a complaint and decides whether it goes to the Commission. §21-3.1(b)(2) assigns that decision to the Commission. He did not identify who "someone" is, what authority they hold, or what standard they apply.

Kuzemchak [35:22]: "I agree, that's exactly what should happen."

Mayor [35:24]: "They may or may not say, gee, it might be a maybe, we ought to like turn it over to the Commission and let them decide because it's a close call."

Kuzemchak: "With all the facts."

Mayor [35:46]: "Just with as many facts as you can glean from the complaint, not from doing your own investigation. What the complaint says may or may not be... is it fair to say it's very fact specific, that the nature of the complaint is going to drive the course of action that gets taken. A vague complaint probably doesn't go very far. A somewhat more specific complaint that points to specific sections of the ordinance and other specific facts make it looked at differently."

The Mayor described a review that draws only on what the complaint contains. §21-3.1(b)(2). What the ordinance actually requires after that initial review is two distinct steps. First, a preliminary investigation to determine jurisdiction, frivolousness, and factual basis only. §21-3.1(b)(2), §21-3.1(c). Second, if the complaint survives, a primary investigation with four mandatory obligations: *notify the subject, give the subject an opportunity to present information, gather information from any person with relevant knowledge, and deliver a written report to the Commission. §21-3.1(c)(2), §21-3.1(d). What the Mayor described is not a preliminary investigation. It is not a primary investigation. It is a document review with no legal basis in the ordinance*

The exchange that follows, from **[36:02]** through **[39:43]**, is documented in full in the companion insert to "Where Ethics Complaints Go to Die: The Informal Filters Operating Outside Chapter 21." That insert covers the Ethics Commission chair's description of the pre-screening process, including the private discussion between the commission chair and the City Attorney that occurs before any complaint reaches the full Commission.

The exchange resumes here:

Kuzemchak [39:43]: "Well, that's a little terrifying to me right now. But I just want to be sure that if we're saying that an investigation is going to be done, that the investigation is actually done."

Ethics Commission Chair [39:54]: "Mr. Mayor, may I be excused? I can't take this."

Mayor [40:00]: "You were not required to stay."

The Ethics Commission chair left the meeting immediately after Kuzemchak said investigations need to actually occur. No explanation was offered on the record.

MacShane [40:13]: "Can we have a pause just so I can understand what is happening right now. So was that our only member of the Ethics Commission present for this meeting? And city attorney, can you review for us what the topic of this meeting is?"

City Attorney [40:36]: "Well the topic of this meeting generally is that ethics ordinance. I've presented the revisions that I'm proposing which are based on the direction of the state. You're obviously free to talk about anything else."

MacShane [40:51]: "And just to understand, the member of the Ethics Commission just excused himself and left this hearing."

City Attorney: "That would appear to be correct, yes."

MacShane [41:09]: "And did he explain to you why he was doing so?"

City Attorney [41:12]: "He just said he was leaving."

The Ethics Commission chair's departure followed directly from Kuzemchak's statement that investigations need to actually occur. No explanation was offered for the departure on the record.

Russell [41:21]: "So here's my perspective. We are here to discuss changes to the ethics ordinance. The shift has become more of an evaluation of how the Ethics Commission does its job, which I think is a separate discussion. If we want to talk about how the Ethics Commission works through its process, I think that's absolutely valid. But I haven't heard anything yet about the ordinance in front of us."

Kuzemchak [41:43]: "But part of my point is that we should have something in the ordinance that helps us determine how our Ethics Commission does its job. And part of my concern is that they're not being given all of the information prior to a hearing, possibly."

The ordinance is what governs how the Commission conducts investigations. A discussion about changing the ordinance cannot be separated from how the Commission operates under it. Russell called it a separate discussion. Kuzemchak said the ordinance should define how the Commission does its job and that her concern was the Commission was not receiving all the information it needs before a hearing. §21-3.1(d).

Mayor [42:05]: "All I could ask is, on what would you base such an assertion in a public setting?"

Kuzemchak raised a concern about whether investigations are actually conducted. The Mayor did not respond to the concern. He asked her to justify it publicly. The only Ethics Commission representative present had just left the room. The question of whether investigations occur had just been raised. His response was to ask her what basis she had for raising it a

Nash [42:12] I have a question can an investigation proceed without a complaint,

City Attorney yes

Nash for our ordinance that's right in front of us right now

City Attorney yes

Nash [42:21] okay so per that per that line of thought what information is provided to someone being investigated prior to being investigated so per the mayor's discussion there's a complaint and the complaint provides a lot of information that then you can prepare for an answer to but an investigation does not provide such complaint or information is that accurate

City Attorney [42:45] is it accurate to say that there's nothing provided to the person against who the complaint was being lodged I just want to make sure under

Nash [42:21] I think there's no complaint

City Attorney [42:56] right so if there's if there's no complaint and the Ethics Commission on its own initiative wants to look into an alleged violation so the language says the Commission may initiate an investigation into an alleged violation of any provision of this chapter an investigation initiated under the subsection will be conducted in the same manner as complaints which means essentially that the Commission has to determine whether there are sufficient facts upon which to base the determination etc so and and

Nash [43:30] there's no provision in the ordinance that someone being investigated is notified that's while they're being investigated

City Attorney [43:38] that's correct okay and certainly if there are revisions that you want to make to these provisions of the ethics ordinance as long as they don't conflict with state law you are you are you know you have the ability to do so and

The City Attorney confirmed that Commission-initiated investigations follow the same process as formal complaints. §21-3.1(c)(2). That process requires notification to the subject. §21-3.1(d)(1). Minutes later, the City Attorney confirmed the subject receives no notification.

Russell [43:50] can you tell me what section you were just citing about the Commission

Mayor [43:54] 21 3 C

Russell lots of pages here I'm just trying to scroll to each...

Russell [44:15]

oh okay so okay so the Commission may initiate an investigation into an alleged violation to me an alleged violation is a complaint how else does one alleged violation to be investigated if there hasn't been some allegation and by whom does that allegation need to be made can it be the a member of the Ethics Commission themselves or that so that's a little confusing in that question

City Attorney [44:42] as written it could be right it could be anyone it's it seems to indicate that it's something an act a formal complaint has to be written and under oath so if you don't have that but someone you know grab the Ethics Commission chair on the street and says hey Kuzemchakazumchuk said something bad at lunch and they don't file a formal complaint the chair of the Ethics Commission could convene a meeting and say okay we've we've had an alleged violation of of the ethics ordinance and proceed under the same general procedures as you would as you would had there been a formal complaint

Mayor [45:16] if a majority of the Commission concurs

City Attorney yes

The ordinance permits the Commission to initiate an investigation into an alleged violation. §21-3.1(c)(2). The Mayor stated a majority of the Commission must concur. No such requirement appears in the ordinance for a self-initiated investigation. The formal complaint process begins with a filed complaint. §21-3.1(a). A self-initiated investigation has no filed complaint. The ordinance provides no defined path for it to enter the formal process.

Russell [45:18] so a complaint from somebody has to actually be written and submitted but this self-initiated alleged violation

City Attorney could come from anywhere

Russell it doesn't come it's not held to the same standard okay that may be something we want to look at well

Russell identifies on the record that the self-initiated path is not held to the same standard as a formal complaint. That is a sitting elected official flagging a two-tiered process in real time.

The City Attorney confirms it could come from anyone. No sworn statement. No formal filing. No named provision. Compare that to what a formal complainant must provide under §21-3.1(a) -- written, under oath, naming the specific provision allegedly violated.

Mayor [45:40] I will I'll use in a different realm someone who makes a complaint in an employee relationship so an employee alleges that there was some bad behavior by a co-worker I don't I don't believe that we would want to require that employee to swear under oath or sign some affidavit if we thought the information was credible we would invest if the allegation was severe enough we would investigate it to determine without what constitutes a formal complaint is or is sort of is the kind of the fuzzy question

> *The sworn complaint requirement protects the person being accused. §21-3.1(a). The Mayor described skipping it based on the severity of the allegation. Severity is not a standard anywhere in the ordinance. No governing document identifies who makes that determination or how it is recorded. An ethics process that treats identical allegations differently based on an unauthorized judgment call is not a consistent process.*

Kuzemchak [46:24] so for me the fuzzy question is the investigation so I'm not fuzzy about what constitutes a complaint I mean I think lots of different complaints can be made and there are lots of different parts of the ordinance I think for me it's what constitutes an investigation the commission should have all the facts in front of it when it makes the decision as many facts as possible when it makes the decision to move forward asking for a hearing and again possibly causing somebody to spend thousands of dollars on an attorney so

Mayor [47:03] I think that's where it gets tricky so because you don't have all the facts until you do the investigation it's a bit of a

Kuzemchak [47:08] okay but there's for me the investigation itself is there's a minimum to that right and at least a minimum part of that investigation should be at the very least contacting the person that the complaint has been made against and say hey I think you violated the ordinance or hey do you are you still working at Macintosh because you know you did this and because you work at Macintosh that means that

Mayor [47:43] I can see a scenario in fact I can see a fairly recent one where disclosing the nature of that investigation to the individual who's being investigated at the start of that may not have necessarily been the right approach that you would want to take

> *The ordinance requires notification to the subject of a complaint. §21-3.1(d)(1). It is mandatory. No exception exists based on the nature of the case, the severity of the allegation, or anyone's judgment. The Mayor described skipping it as reasonable.*

Nash [48:00] but that wasn't that wasn't an entirely an ethics Commission investigation

Mayor [48:05] that was almost no I mean unfortunately I'm using that as an example of a kind but

Kuzemchak [48:10] I don't know it didn't even know what you are talking about.

Russell [48:12] Im getting really uncomfortable the level of detail that we're alluding to here

Kuzemchak [48:17] I honestly don't know what you're talking about

Nash clarified that the case the Mayor referenced was not entirely an Ethics Commission investigation. No one identified what it was, who conducted it, under what authority, or what process applied. The exchange ended there.

City Attorney [48:20] so I can tell you a couple things one there's very little detail in either the state law or obviously in our ordinance about how any of those processes are to work again as long as whatever you want to do doesn't conflict with the state law you're free to amend the ethics ordinance to provide more detail to provide some more standards for investigations I would say I'm happy to look around and see if anyone else has any procedures that we could lift some language from as a starting starting place it's not something this has been like this certainly since I've been here I don't know how many years before that and probably does need a closer look

The City Attorney, who reviewed this ordinance for legal sufficiency and administers it by default, described it at this workshop as having "very little detail in either the state law or obviously in our ordinance about how any of those processes are to work."

Kuzemchak [48:58] and as we've heard many times especially over the past couple of years just because it was done in the past that way doesn't mean that it should be done in the future that way and again I know this sounds like I'm it's for me really it's about making sure people have the information that they need whether it be through the conversation which for me that whole procedure and whether somebody should just be on the other end of a phone or the investigation itself in the review of a complaint so this really is not I mean yeah I have some other issues but for me the the language here the investigation and review really that's the that's the heart of it to me and then there I mean there are probably other things that need to be discussed

Russell [49:50] I'll just say from my experience that investigation can be anything from asking one question to a years-long delving into of you know all kinds of circumstances investigation is all kinds of things I think if there's a question of whether or not a complaint is getting adequately investigated and whether or not the people conducting that investigation need additional training or they have missed something then I think that's something that can be addressed that I mean if it's a question of whether or not an investigation a hypothetical investigation maybe somebody felt they should have been asked a

Russell [50:42] question and they were never asked that question so there's a feeling that the investigation was incomplete maybe it is maybe it isn't depends on the investigation I don't know but you know there's no there's no harm in you know reinforcing training

and reinforcing the skill set that the Ethics Commission members have in order to conduct their business

Russell suggested additional training. Kuzemchak's concern was not the quality of investigations. It was whether the ordinance defines what an investigation must be and must produce. Training cannot substitute for standards that do not exist.

Kuzemchak [50:59] I don't think we know though I mean who does the investigation we don't even know that

After forty-five minutes of direct questioning, no one in this exchange had distinguished between the preliminary and primary investigation or clearly identified who conducts either one. The ordinance assigns both to the City Attorney by default. §21-3.1(b)(2), §21-3.1(c)(2).

MacShane [51:03] well to just also sort of acknowledge the room that we're sitting in right now you know to Russell I'm very worried about what you just proposed as it seems to me we have just been demonstrated that the Planning Commission (Ethics Commission) is above the scrutiny of the city officials seemingly when offended our Planning Commission (Ethics Commission)

MacShane [51:42] member just left I'm sorry Ethics Commission member just walked out of the room and I have that's troubling when the Ethics Commission does not need to acknowledge questions about how it conducts its functions and it's doubtful that a concept around retraining or this it would go anywhere so I'm very worrisome the whole the whole fiasco is very disconcerting

MacShane said he was troubled by what had just been demonstrated, that the Ethics Commission appeared to be above the scrutiny of city officials. He questioned whether retraining would go anywhere.

Nash [52:30] so I think you said something miss Nelson that I think was important you said that the Ethics Commission members apply the law right they have the but we don't like many of our commissions we don't require them to have any professional training or any sort of and that's difficult right I mean it would be difficult to five f attorneys that would be willing to spend their time on this but then do you as our city attorney are they are they at all required to listen to you like so my concern here is like who's protecting the city legally because anyone who has a complaint brings or can bring is up as it's an optional if they have the financial resources and the professional connections to do so can bring an attorney to these things but who then is protecting the city and the residents because if they're not obligated to listen to you and I guess this is probably a problem for

everything as Ethics Commission in the cut and you know the country the state whatever but I think that's the overarching sort of flavor of the day for me well and

Mayor [53:39] I would I would I would add on to that to say that the answer your question really comes down to the decision-making of any member of a board or Commission in the city of Frederick which is that they are free to make decisions that are good bad or otherwise they are not free to make decisions that are a violation of the law and so what we'd be looking for the Ethics Commission to do would be to at least make decisions that comply with the law even if everyone looking at it through reasonable eyes would say I disagree with that it's like the Planning Commission if they voted to do one thing they follow the process to do that the city's in that regard the city is protected because they followed a legitimate process it's when they don't follow a legitimate process of any border Commission didn't follow a legitimate process that's when the city would be at risk by their decision yeah

Nash asked who is protecting the city legally. [52:30] *The Mayor said the city is protected as long as the Commission follows a legitimate process.* **[53:39]** *A legitimate process must be consistent. At this same meeting the City Attorney described the process as having very little detail in either state law or the ordinance.* **[48:20]** *The Ethics Commission chair described complaints being dismissed in a private conversation before the full Commission ever convenes.* **[36:58]** *A process that varies by complaint, by administrator, and by circumstance provides no legal protection to anyone.*

Nash [54:26] I respect that point of view mayor I think I think the challenge here though is the only appeal is through a higher court right and so someone could pretty easily choose for five people who have no understanding or real no legal training could very well make a decision that's not legally prudent and then the city is then should that person choose but that is just the risk that we take because there's no obligation to listen to you

Mayor [54:58] I think that could happen at the HPC it could happen to Planning Commission the ZBA those sort of decision-making bodies the legal the lawyers are in the room to advise them on what the law says what the code says to give them the best guidance possible on making a decision at the end of the day if they have robust conversation and they make a decision that the city attorney may disagree with but is legally sound the city's argument is going to be we're going to defend that decision because it was at least made legally sound even if we don't think the decision was

Shakelford [55:36] I mean I kind of challenge kind of see your point but at the same time I know since I've been here on this ... and some have been here longer I know there have been times that anyone can sue us for these respective votes that we've taking and ... may have asked a question with city attorney or our city attorney and they may have given varying viewpoints of that I mean in terms of I mean so ... it's sort of a wide I mean I get our conversations and sort of a wide net yeah we kind of sort but we're talking specifically about the ethics ordinance that maybe we need to look at through a different lens

City Attorney [56:25] we get the best legal advice that we can but what we don't generally do is say you absolutely have to apply the HPO to this property let's say here you know here's the process here's the law here's we'll answer specific questions but I don't I don't think it should look like the city attorney is the one making the decision or trying to tell the whatever body it is what what the answer should be

Nash [56:48] but you are on the record in those instances and here you're on the record giving your opinion so perhaps that's the answer maybe for any advisory opinion you have to review it and give a legal opinion and maybe that's good enough okay

Mayor [57:00] and what happens with all those decisions is what you hope is there's robust facts that underpin that decision so that it's not just I'm for something and we have this conversation often on certain kinds of that's those findings of fact of why we've made this decision and these are the reasons why we think the decision is valid all of that gives our lawyers in the event they have to go back into thankfully it's it's really rare that the decision-making of anybody in the city of Frederick it gets questioned but it's but but it's always possible

> **The Mayor defended the process as legitimate. [57:00]** *The people who run it spent an hour unable to clearly describe it. The City Attorney said it has very little detail in state law or the ordinance.* **[48:20]** *The Ethics Commission chair described complaints being resolved before the Commission ever convenes.* **[36:58]** *The Mayor compared this to the HPC and the Planning Commission. Those boards determine what gets built. The Ethics Commission determines whether someone violated the law and impacts their reputation. The stakes are not the same.*

Kuzemchak [57:37] but and part of that's because of fact I can't afford an attorney to go to circuit court so should something should I be fined or I can't afford an attorney to go to circuit court that's a that's a fact so just because we are not just because it isn't taken to circuit court doesn't mean it's right

> *Kuzemchak stated on the record that the process has not been challenged in circuit court because people cannot afford an attorney. The absence of a legal challenge is not confirmation that the process is sound.*

Mayor [58:18] specifically we're here before you today because state law changed and we have to incorporate those changes into our ordinance

Kuzemchak [58:26] and I would like some more changes added that include how an investigation takes place before the Ethics Commission brings some I don't know how it's out is but before a person gets pulled in to have to I just I want all the information to be part whether that is Russell as you say whether it's a question or a year of questions and I understood Commission member Stups concern that things get taken care of quickly but sometimes you if you do something too quickly it gets done wrong so it's better to have all

the facts before you push something forward and again I just want us looking at both sides of this not just one side of it

Russell [59:33] just out of curiosity I can't was it two or three years ago that we that we completely like overhauled this ordinance

Mayor [59:43] well had a new section it wasn't a complete overhaul but we did we did add new language to cover an area where we where we saw there was a deficiency saw there was a deficiency and we addressed it so I guess if the if it's the will of the board that there are some additional

Mayor [59:58] additional deficiencies in there but what has to happen is someone on the board or some members of the board have to craft what they would want to see is changes in that regard and and give them because if you or explain it to the city attorney the changes that you'd like to see what I don't what the city attorney and I have not had a conversation about is whether we believe I think we believe the existing ordinance is adequate for the purposes that it's intended to exist but if there are additional changes then those changes have to be put forward and those will then need to be compared to the state law to make sure that we're not putting any kind of change into our ordinance that but somebody's got a somebody has to write that or have a conversation with the city attorney specifically about what they want that to say

The Mayor stated that he and the City Attorney believe the existing ordinance is adequate. The City Attorney described that same ordinance as having very little detail about how the investigation process works. [48:20] *The Ethics Commission chair walked out rather than answer questions about how the Commission conducts investigations.* **[39:54]** *These are three different descriptions of the same process by the three people most responsible for it.*

Russell [1:00:44] is it appropriate or better to have some sort of procedure like that outlined in the ordinance itself or to have a an SOP save for the Ethics Commission or for how these things progress or is there a doesn't matter

City Attorney [1:01:00] well the Ethics Commission does have a little bit more detail in its rules of procedure not a lot of course if you leave it to the Ethics Commission then Ethics Commission can do whatever rules at once so as the board of aldermen if you want some more control over how you want that process to look then you would want to put it in the ordinance but I guess the real answer to your question is probably a combination of both right if you were to change the ordinance to add to flesh out the to establish you know criteria for an investigative process or whatever the Ethics Commission would probably follow suit by revising its rules of procedure to to make sure everything meshes together and maybe provide even more detail as to how that would work so they kind of have to go together

The City Attorney told the Board that defining the investigation process belongs in the ordinance. The Board passed the ordinance on December 7, 2023. The Mayor signed it. The investigation process was not defined. Every complaint that has moved through this process before and after that date has moved through a process this meeting established has no defined standards, no required output, and no clear assignment of responsibility.

Transcript rendered from the official City of Frederick Board of Aldermen Workshop recording, March 1, 2023, by Cathy Anderson, Frederick resident. Annotations are the author's analysis based on the Code of Ordinances, Chapter 21, and the Rules of Procedure of the City of Frederick Ethics Commission. The official recording is part of the public record and is available on the City of Frederick website.